

## Opinion of the Court

a check over Congress' exercise of legislative power. See U. S. Const., Art. I, § 7. Yet individuals, too, are protected by the operations of separation of powers and checks and balances; and they are not disabled from relying on those principles in otherwise justiciable cases and controversies. In *INS v. Chadha*, 462 U. S. 919 (1983), it was an individual who successfully challenged the so-called legislative veto—a procedure that Congress used in an attempt to invalidate an executive determination without presenting the measure to the President. The procedure diminished the role of the Executive, but the challenger sought to protect not the prerogatives of the Presidency as such but rather his own right to avoid deportation under an invalid order. Chadha's challenge was sustained. A cardinal principle of separation of powers was vindicated at the insistence of an individual, indeed one who was not a citizen of the United States but who still was a person whose liberty was at risk.

*Chadha* is not unique in this respect. Compare *Clinton v. City of New York*, 524 U. S. 417, 433–436 (1998) (injured parties have standing to challenge Presidential line-item veto), with *Raines v. Byrd*, 521 U. S. 811, 829–830 (1997) (Congress Members do not); see also, *e. g.*, *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U. S. 477 (2010); *Plaut v. Spendthrift Farm, Inc.*, 514 U. S. 211 (1995); *Bowsher v. Synar*, 478 U. S. 714 (1986); *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U. S. 50 (1982); *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S. 579 (1952); *A. L. A. Schechter Poultry Corp. v. United States*, 295 U. S. 495 (1935). If the constitutional structure of our Government that protects individual liberty is compromised, individuals who suffer otherwise justiciable injury may object.

Just as it is appropriate for an individual, in a proper case, to invoke separation-of-powers or checks-and-balances constraints, so too may a litigant, in a proper case, challenge a